

PERFORMANCE WORK STATEMENT

SECTION C – DESCRIPTION/SPECIFICATION/WORK STATEMENT

C.1 GENERAL REQUIREMENTS

This contract is for Architect-Engineering (A-E) design services in support of various projects at the Naval Surface Warfare Center, Dahlgren Division (NSWCDD), Wallops Island, VA, the Naval Observatory (Washington D.C.), and Pumpkin Neck (King George, VA). This procurement will result in a single award Indefinite-Delivery-Indefinite-Quantity (IDIQ) contract for multi-discipline A-E services for planning, and design of new construction and renovation projects. The requirement of the A-E IDIQ is to provide new construction, renovation, repair, replacement, demolition, alteration, and improvement of facility/infrastructure projects. Projects may include single or multiple disciplines, such as structural, civil, mechanical, electrical, architectural, planning, environmental, fire protection, cost estimating, and geotechnical services. The types of projects may include building renovations; building additions; site work required to support new work; new construction; roads; parking areas; bridges; foundations; retaining walls; failure investigation including destructive and non-destructive testing; seismic evaluation and design; progressive collapse analysis; blast resistant design; structural engineering investigations; utility systems including sanitary and storm; water systems; storm water management; sediment and erosion control; earthwork; surveying; pavement design; civil engineering studies; and electrical and Heating, Ventilation, and Air Conditioning (HVAC) design for renovations or new facilities. This is necessary to support the NSWCDD mission, while enhancing the safety and quality of the workplace environment. Required tasking shall be provided in further detail with specific individual Task Orders. Task Orders will consist of Firm-Fixed-Price (FFP) orders. These services will be procured in accordance with 40 United States Code (USC) Chapter 11, Selection of Architects and Engineers, as implemented by Federal Acquisition Regulation (FAR) Subpart 36.6. The IDIQ contract will be for a single five-year ordering period. The FFP Task Orders will be negotiated for this contract. There will be no minimum or maximum dollar limits per Task Order, except for the maximum value set for the entire contract.

C.1.1 SCOPE OF SERVICES

The A-E firm shall provide all labor and materials necessary to provide facility planning and design services for new facilities/buildings/infrastructure and sustainment/renovation/modernization projects. The A-E services may include work in areas such as planning studies; project programming documents (DD Form 1391 development); developing of requirements; preparing engineering evaluations; project scope; unit guidance or parametric cost estimating; cost valuation surveying; development of alternatives and economic analysis; analysis of proposed sites for foundations; utilities; access; constraints and identification of environmental issues; concept and site sketches; recommendations on potential utilities impacts; sustainable features; and may require enhancement of previously prepared basic documentation. The DD Form 1391 documentation shall be prepared in the Navy's Electronic Procurement Generator (EPG). All such support shall be accomplished in strict accordance with all applicable Navy and local instructions, processes, and procedures. Architectural and engineering requirements will be identified in the individual Task Orders.

C.1.2 A-E services that may be required include:

- a) Facility planning and project development: Services may include work such as the following: Prepare master plans, project/site plans for proposed facility/infrastructure projects. Facility planning may be requested for renovation, addition, repair and new construction projects.
- b) Development of Design-Bid-Build (DBB) packages: Services may include preparation of drawings and specifications for renovation, addition, repair or new construction projects. Design meetings with the Government may be required to agree on design solution(s) that meet the Government's project requirements.
- c) Development of Design-Build (DB) Request for Proposal (RFP) packages: Services may include working with a construction manager as part of a DB team to prepare drawings and specifications for renovation, additions, repair or new construction projects. Design meetings with the Government may be required to agree on DB solution(s) that meet the Government's project requirements.
- d) Preparation of cost estimates using unit guidance and parametric cost estimating: Services may include preparing cost estimates for renovation, addition, repair and/or new construction projects based on prepared design documents.
- e) Development of alternatives and economic analysis: Service may include providing alternate design solutions and associated economic impacts for renovation, addition, repair or new construction projects.
- f) Condition assessment: Services may include performing studies of existing buildings and/or components of buildings to validate existing conditions that may then be used to inform future proposed design solutions. Site visits may be required to document existing facility/infrastructure conditions.
- g) Field investigations (including utility and geotechnical): Services may include conducting field surveys/investigations of existing sites, buildings or specific components of a building (i.e. HVAC or electrical systems) to document the current status of a facility's infrastructure. The results of any field investigations may then be used to assist with the preparation of design documents for a particular project.
- h) Surveying and mapping: Services may include surveying and/or mapping of existing or proposed sites for a new construction project or building addition. Survey work may be required in order to document existing site conditions to support site/civil design solutions.
- i) Preparation of engineering evaluations: Services may include performing engineering calculations to support civil, mechanical, electrical, plumbing or fire protection design solutions.
- j) Incorporation of sustainable engineering design practices: Services may include incorporation of design principles for renovation, addition, repair and/or new construction projects to support sustainable design solutions and/or LEED certification.
- k) Consultations: Services may include collaborating with other specialty design professionals to offer and propose design solutions required to respond to unique project requirements.
- l) Energy computations: Services may include preparation of energy calculations to verify proposed design solutions comply with required building codes, federal, state and/or local energy requirements.
- m) Soil borings: Services may include conducting soil boring testing to identify minimum design requirements for new construction projects or building additions.

- n) Obtaining permits and regulatory approvals: Services may include submitting design documents to local, state and/or federal jurisdictions for review and approval prior to proceeding with renovation/construction work.
- o) Environmental investigation and consultation: Services may include providing design services required to meet environmental/Environmental Protection Agency (EPA) regulations on facility/infrastructure projects and providing consultation(s)/collaboration with the Government to discuss acceptable environmental design alternatives and solutions.
- p) Review of Contractor submittals: Services may include review of project submittals (such as product data or product samples) in order to validate proposed materials/products comply with design drawings and/or specifications.
- q) Field consultation and inspection during construction: Services may include responding to Contractor's Request for Information (RFI) during construction to address design questions that may arise during construction/renovation projects.
- r) Commissioning: Services may include supporting the commissioning process by attending commissioning meetings to validate engineered design solutions are incorporated into the project in accordance with design specifications.
- s) Operation and Maintenance Support Information (OMSI): Services may include providing the Government with Operation and Maintenance (O&M) documentation and training, where applicable, based on the final design solution and construction.
- t) As-built drawing preparation: Services may include updating design documents including drawings and specifications to accurately reflect construction field changes and document final as-built construction/renovation projects.
- u) Functional Analysis Concept Development (FACD)/design charrette/other design and construction related workshops and meetings: Services may require attendance at design meetings to collaborate with Government representatives to consider design options and build consensus regarding preferred design solution(s).

C.1.2 HOURS OF OPERATION

Normal working hours at all locations are Monday through Friday, 0600 to 1700. Work shall not occur outside those hours unless previously approved by the Contracting Officer, or specified in a Task Order. In the event that Government testing schedules interfere with the Contractor's planned work schedule, and that interference will cause a delay in schedule or increase in price, notify the Contracting Officer immediately.

C.2 TASK ORDER PROCESS

C.2.1. ORDERING PROCEDURES

C.2.1.1 All subsequent Task Orders under this Indefinite-Delivery-Indefinite Quantity (IDIQ) will be awarded as Firm-Fixed-Price (FFP).

C.2.1.2 A site visit will be scheduled as necessary to review and clarify the requirements of the Task Order Proposal Request (TOPR), verify existing conditions, and obtain whatever measurements and information are necessary to develop a complete and accurate Task Order Proposal (TOP).

C.2.2 CONTRACTOR PROPOSALS

An acceptable TOP shall consist of the following:

C.2.2.1 Cover Sheet: Each TOP cover sheet shall include contract number, project number, project title, contact information for the Contractor, performance period, assumptions, exceptions, and the date to which the proposal will be valid. At a minimum each proposal shall be valid for 120 calendar days unless a longer period is requested in the TOPR.

C.2.2.2 Price: An electronic copy of the Contractor's pricing, with sufficient data to substantiate pricing (data other than certified cost or pricing, ref. FAR 52.215-20 Alt IV). The Government reserves the right to request additional pricing information after receipt and evaluation of proposals.

C.2.2.3 Project Schedule: Each TOP shall include a brief critical path schedule, taking into account the major work elements, mobilization, anticipated weather delays, and final acceptance. The proposed timeline should be of sufficient detail to demonstrate that the Offeror can meet the Government's proposed Period of Performance (PoP).

C.2.3 PERIOD OF PERFORMANCE

If the Government has a maximum PoP it will be stated in the TOPR. If not, the Contractor can propose a PoP using the brief critical path schedule. The PoP shall start on the TO award date, unless otherwise agreed upon and determined by the Contractor and the Government. The calculated PoP is made up of the following:

- Project Closeout: Not more than 30 calendar days. Time allotted to the Contractor to prepare all project close out submittals and submit application for final payment.

C.2.4 EVALUATION

The Government will evaluate TOPs based on criteria stated in the TOPR.

C.3. COMMENCEMENT OF WORK

C.3.1 TOs will be issued by the Contracting Officer using the Department of Defense (DD) Form 1155, Order for Supplies and Services. Each TO will include the following information:

- Date of Task Order;
- Contract Number and Task Order Number;
- Item Number, description, material submittal requirements, quantity and unit prices for items and total;
- Task order price and delivery or performance date;
- Accounting and appropriation data;
- Liquidated damage, if any; and;

- Any statement of work, drawings or other pertinent data.

C.3.2 In rare circumstances, on projects deemed emergencies, the Contracting Officer may issue verbal direction prior to the issuance of the written TO. In those circumstances, the Notice to Proceed (NTP) shall be the date the Contractor received the verbal NTP from the Contracting Officer with written notification to follow with seventy-two (72) hours.

C.4 PROJECT REQUIREMENTS

C.4.1 Each Task Order (TO) will specify the project requirements. The following are required in all TOs:

- a) Procuring all construction equipment, materials, and documentation necessary for timely completion of projects. The Contractor shall maintain all certification and re-certification equipment paperwork; inspection records (Quality (QA) / Quality Control (QC) form filled out by Government Technical Point of Contact (TPOC) to inspect prior to small projects, attached to the Service Request (SR) ticket); and permits and licenses for heavy equipment operation.
- b) Providing a project schedule at the beginning of each Task Order. A Government approved schedule is required prior commencing work on any project. The Contractor shall be required to maintain the schedule throughout the duration of the project and adjust the schedule accordingly based on any project delays or efficiencies incurred throughout the course of the project.
- c) Conducting a site visit prior to commencing work to verify existing conditions; coordinating with NSWCDD/Naval Facilities Engineering Systems Command (NAVFAC) to confirm location and type of existing utilities at buildings or sites that may be impacted by construction work.
- d) Regularly inspecting all work to ensure it is in accordance with all project requirements, design documents, and safety requirements.
- e) Obtaining all permits and regulatory approvals required to perform work (ex: Virginia Department of Environmental Quality (VDEQ)).
- f) Operation and Maintenance Support Information (OMSI): Providing training to the Government on operating and maintaining all critical systems. The Contractor shall submit to the Government all O&M manuals at the conclusion of each Task Order.

C.4.2 REGULATIONS

C.4.2.1 All work performed under this contract shall be performed following applicable Government plans, standards, policies, and processes. The Contractor's activities shall conform to the systems test and operations environment and standards including all updates, improvements, and additions to these process documents made over the life of the contract. The

Contractor shall use the Department of Defense (DoD) Unified Facilities Criteria (UFC) for facilities and infrastructure construction and modification. All documentation shall be developed within the software environment specified by the Government, Microsoft Office toolset and other specific tools and environments as stipulated in each Task Order. Deviations from these processes, policies, and procedures are not authorized without advance approval by the COR.

C.4.2.2 All projects under this contract shall comply with the most recent edition of applicable federal, state, and local laws, codes, and regulations including but not limited to the following (any exception must be approved in writing by the Contracting Officer):

1. OPNAVINST 5100.23 (5 JUN 2020)
2. OPNAVINST 5100.27B (02 MAY 2008)
3. OPNAVINST 5090.1 (25 JUN 2020)
4. NAVSEA S0420-AA-RAD-010 (19 JUL 2007)
5. NAVFAC P-307 (JAN 2025)
6. NAVSUP Publication 538 (01 APR 2012)
7. NSWCDDINST 5100.1F (2 MAY 2023)

C.4.2.3 The Contractor shall comply with the requirements of NAVSEA and NSWCDD instructions / manuals found at https://wwwdd.csd.disa.mil/program/Security_Office/index.html regarding performance in Government facilities.

C.4.3 Contractor Personnel

C.4.3.1 The Contractor shall employ a sufficient number of qualified personnel to adequately perform and oversee all work under this contract. When work is performed at any site, the assigned Lead (i.e. Superintendent, Supervisor, Foreman, etc.) or an appointed alternate shall be available as a liaison for the Government. Any appointed alternate shall be authorized to act on behalf of the Contractor.

C.4.4 Employee Equipment

The Contractor shall provide all required Personal Protective Equipment (PPE) and any special equipment required for safe and timely completion of projects. Certain Safety items will need to be approved by NSWCDD Base Safety prior to use (example: safety harness for fall protection).

C.4.5 Employee Requirements

C.4.5.1 The Contractor shall ensure that the employees and Sub-contractor employees have current, valid licenses and certifications necessary to perform their functions. Any cost or time associated with obtaining licenses or certifications shall be at the Contractor's expense. Training necessary to ensure that personnel performing under this contract maintain the knowledge and skills to successfully perform the required functions is the responsibility of the Contractor. The Contractor shall ensure manufacturer certified maintenance personnel perform maintenance and

repair on mechanical and electrical critical systems in accordance with this PWS.

C.4.5.2 As defined by Paragraph 1-5 of United Facilities Criteria (UFC) 3- 600-01, Fire Protection Engineering for Facilities, this contract requires the services of a licensed fire protection engineer or Consultant.

C.4.5.3 All engineering and design services shall comply with the most current edition of Facilities Criteria (FC) 1-300-09N Design Procedures, and other requirements as indicated on the Whole Building Design Guide (WBDG) Web Site (www.wbdg.org). The selected A-E Contractor shall have online access to web-based support programs and email via the internet for routine exchange of correspondence/information with the COR / Government TPOC. The selected A-E Contractor shall submit and maintain an A-E Accident Prevention Plan (APP) in accordance with U.S. Army Corp of Engineers (USACE) EM 385-1-1 for each project on this contract and Activity Hazard Analysis (AHA) for each in-field action.

C.4.5.4 Specific disciplines that must be included in Key Personnel are:

Project Manager(s)
Senior Architect
Senior Civil Engineer
Senior Structural Engineer
Senior Mechanical Engineer
Senior Electrical Engineer
Senior Quality Control Manager
Senior Fire Protection Engineer (A licensed Fire Protection Engineer is required)

C.4.6 Employee Conduct

The Base Commander has authority to refuse access to any person working under this contract for reasons of misconduct, security, or if found to be or suspected to be under the influence of alcohol, drugs, or any other incapacitating agent (ref. 18 U.S.C.1382 (1972)). Assignment, transfer, and reassignment of Contractor personnel shall be at the discretion of the Contractor. However, when the Government directs, the Contractor shall remove from contract performance any person who endangers life, property, or national security through improper conduct. All Contractor personnel engaged in work while on Government property shall be subject to the Standards of Conduct contained in SECNAVINST 5370.2J. All persons engaged in work while on Government property shall be subject to search of their persons (no bodily searches) and vehicles at any time by the Government, and shall report any known or suspected security violations to the appropriate Security Department.

C.4.7 Employee Required Training

The Contractor shall have personnel certified in Hazard Communication (HAZCOM). On a Task Order basis, Contractor personnel may be required to take training mandated by NSWCCD. Examples include but are not limited to Anti-Terrorism Training, Annual NSWCCD environmental awareness, Privacy Training, and Information Assurance Training.

C.4.8 Mandatory Requirements

All Mandatory Requirements shall be maintained throughout the life of the Contract. The mandatory requirements are as follows:

Requirement 1: Program Manager must have a minimum of ten (10) years of experience in architecture and engineering.

Requirement 2: Must be able to access NSWCD Base through the Pass and ID Office.

Requirement 3: Must have and maintain all necessary trade certifications required to perform all work under this PWS.

C.5 Contract Data Requirements List (CDRL)

1. CDRL A001 - Contractor's Personnel Roster

Within ten business days of Task Order issue, the Contractor shall submit a list of all employees working on the project to the Contracting Officer. This list shall include each employee's name, and work assignment. Changes to the personnel list shall be submitted at least ten business days in advance. In emergency situations and cases of adverse actions where ten business days' notice is not possible, the Contractor shall submit the required information regarding the change in writing to the Contracting Officer Representative (COR) not later than 24 hours after the replacement employee is on board.

The Contractor shall submit a Hazardous Material Management Plan (HMMP) as addressed in paragraph C.7.2.2.

2. CDRL A002 - Status Report

Contractor shall provide a Monthly Status Report for each project in which the support was provided. The report shall discuss major impacts, issues, and steps for remediation of issues, proposals to improve operational efficiencies, effectiveness, quality, or the customer experience.

3. CDRL A003 - Product Engineering Design Data and Associated Lists

The Contractor shall develop and deliver drawings, specifications, architect / engineering reports, to the Technical Point of Contact upon request.

4. CDRL A004 – Manhour Estimate, Technical Cost Proposals

A&E firms shall prepare cost estimates utilizing the Micro-Computer Aided Cost Estimating System (MCACES) MII estimating system. Specifications shall be prepared in the Specifications-Kept-Intact (SPECSINTACT) program. Design-build RFPs shall be prepared

utilizing Design-Build Masters, and drawings shall be prepared in AutoCAD (2016 or higher) utilizing the National Computer-Aided Design and Drafting (CADD) Standards format. Three-Dimension (3-D) and BIM modeling may also be required. The Contractor shall provide documents in PDF format. Final documents shall be electronically signed by the assigned Architect or Engineer. All projects shall be designed in the modern international standard version of the metric International System of Units (SI), unless specifically exempt.

Specific deliverable documentation will be defined in individual Delivery Orders. Additional requirements may be solicited and documented via revisions to technical specifications as directed by individual Delivery Orders and change requests as approved by the Government. The delivery schedule and quantity of systems to be produced will be specified in individual Delivery Orders. The Delivery Orders may be revised by the Government to update the delivery schedule and quantities to meet emergent Government objectives, to include quick reaction operational requirements.

C.6 CONSTRUCTION WAGE RATE DETERMINATION

Construction Wage Determination(s) shall be current and site specific to each order and incorporated at the time the order is placed.

C.7 SAFETY

C.7.1. SAFETY

C.7.1.1 The Contractor shall comply with the requirements of NSWCDD, Department of the Navy (DON), and DOD safety policies and practices currently in force and all subsequent revisions. Established policies, directives, and guidance relating to safe operating practices and personnel safety are mandatory and shall be complied with at all times. The Contractor shall monitor and observe all activities and personnel to ensure strict adherence and compliance to applicable standard operating procedures and safety procedures. The Contractor shall observe all applicable technical, safety, and policy requirements as applies to the handling of hazardous materials.

C.7.1.2. The Contractor shall address and comply with all applicable workplace and work environment conditions for compliance with the intent and letter of Federal, State, local and DoD Occupational Safety and Health laws and regulations, policies, and practices.

C.7.1.3. All operations are subject to DOD/DON/NSWCDD safety inspections. The Contractor shall support NSWCDD annual safety and environmental facility audits and data collection efforts. The Contractor shall be responsible to correct any deficiencies noted in the annual inspection.

C.7.2. ENVIRONMENTAL AND HAZARDOUS MATERIALS HANDLING

C.7.2.1 The Contractor, suppliers, and Sub-contractors shall comply with all certification, licensing, and training requirements for all federal, state, and local laws and regulations with

respect to the handling and disposal of hazardous materials.

C.7.2.2 Asbestos and lead-based paint assessments may be required on this contract to determine the presence of hazardous material during demolition or at utility points of connections. Work on and around waterfront structures, including under deck and underwater, and work in confined spaces may be required on this contract. The Contractor shall be able to accept work that involves asbestos, lead paint, Poly-Chlorinated Biphenyls (PCBs), and other hazardous materials, work on and under waterfront structures, and in confined spaces.

C.8 SECURITY

C.8.1 PORTABLE ELECTRONIC DEVICES (PEDS)

C.8.1.1 Non-Government and/or personally owned portable electronic devices (PEDs) are prohibited in all NSWCCD buildings with the exception of personally owned cell phones which are authorized for use in General Office Spaces (GOS). All personnel need to be aware of the PEDs policy and being permitted in a building by asking authorized personnel or reviewing the entrance area signs and instructions. The Contractor/personnel visiting shall ensure the onsite personnel remain compliant with this PED policy. NSWCCD instruction defines PEDs as the following: any electronic device designed to be easily transported, with the capability to store, record, receive or transmit text, images, video, or audio data in any format via any transmission medium. PED's include, but are not limited to, pagers, laptops, radios, compact discs and cassette players/recorders. In addition, this includes removable storage media such as flash memory, memory sticks, multimedia cards and secure digital cards, micro-drive modules, ZIP drives, ZIP disks, CD-RWs, DVD-RWs, MP3 players, iPads, digital picture frames, electronic book readers, kindle, nook, cameras, external hard disk drives, and floppy diskettes.

C.8.1.2 Personal Wearable Fitness Devices (PWFDs) marketed primarily as fitness or sleep devices are allowed in all Navy spaces, if they are compliant with NAVADMIN 216/15, where collateral non-Sensitive Compartmented Information (SCI), classified information is processed, stored, or discussed up to and including SECRET. The user must ensure the PWFD is compliant with all requirements in NAVADMIN 216/15, Cyber Hygiene Authorization to use Personal Wearable Fitness Devices (e.g., FitBit, Jawbone UP, etc.) in Navy Spaces, dated 14 September 2015 and register PWFD in the NSWCCD Fitness Device Tracker.

C.8.1.3 Personnel requiring the use of Medical Portable Electronic Devices (MPEDS) must submit Form NSWCCD 5239/4 for SCIF authorization to the SCIF authorizations to the Special Security Officer (SSO). For Special Access Program Facility (SAPF) authorizations, follow the guidance provided by the Government Special Access Program Security Officer (GSSO). Authorizations for use in SAPFs that are co-utilized within NSWCCD SCIFs require coordination between both the GSSO and SSO. For authorizations to use MPED in Collateral Classified spaces, submit form to the Special Programs Branch, Code 1053.

C.8.1.3 PED's belonging to an external organization shall not be connected to NSWCCD networks or infrastructure without prior approval from the NSWCCD Information Assurance

and Compliance Branch. This approval will be granted using the Temporary Approval Request for Information System (TARIS) form and action tracker process.

C.8.1.4 Personally owned hardware or software shall not be connected or introduced to any NSWCCD hardware, network or information system infrastructure.

C.8.2 OPERATIONS SECURITY (OPSEC)

C.8.2.1 Contractor personnel shall follow OPSEC concepts and principles in the conduct of this requirement to protect critical information, personnel, facilities, equipment, and operations from compromise. All Contractors (including Sub-contractors) shall supplement their current security practices by requiring any personnel involved in executing this Task Order to complete Government-sponsored and administered Operations Security (OPSEC) training. In addition, all Contractors shall be aware of the Critical Information and Indicators List (CIIL) for the organization they are supporting as well as the OPSEC Manual for NSWCCD. These OPSEC requirements will be in effect throughout the life of the procurement from award through the conclusion of services at the end of the period of performance (PoP) or other procurement termination. The Contractor must immediately notify the Government upon the discovery of any nonconformance with the OPSEC Plan.

C.8.3 PRIVACY PROGRAM TRAINING

Privacy training is mandatory for all NSWCCD personnel (military, civilian, and Contractor) and must be completed annually. Total Workforce Management Services (TWMS) is the official database for workforce training and is the tool for taking and recording Privacy Act training. The Contractor is responsible for ensuring individual annual privacy training requirements are met.

C.9 PRIVACY INFORMATION

Work under this Contract may require that personnel have access to Privacy Information. Contractor personnel shall adhere to the Privacy Act, Title 5 of the U.S. Code Section 552a, FAR 52.224-2 Privacy Act, and applicable agency rules and regulations.

C.10 NON-PERSONAL SERVICES/INHERENTLY GOVERNMENT FUNCTIONS

(a) The Government will neither supervise Contractor employees nor control the method by which the Contractor performs the required tasks. The Government will not direct the hiring, dismissal or reassignment of Contractor personnel. Under no circumstances shall the Government assign tasks to, or prepare work schedules for, individual Contractor employees. It shall be the responsibility of the Contractor to manage its employees and to guard against any actions that are of the nature of personal services or give the perception that personal services are being provided. If the Contractor feels that any actions constitute, or are perceived to constitute personal services, it shall be the Contractor's responsibility to notify the Contracting Officer immediately in accordance with FAR 52.243-7 Notification of Changes.

(b) Inherently-Governmental functions are not within the scope of this Contract. Decisions relative to programs supported by the Contractor shall be the sole responsibility of the Government. The Contractor may be required to attend technical meetings for the Government; however, they are not, under any circumstances, authorized to represent the Government or give the appearance that they are doing so.

C.11 CONTROL AND ADMINISTRATION OF CONTRACTOR PERSONNEL

(a) The Contractor shall comply with the requirements of NAVSEA and NSWCDD instructions regarding performance in Government facilities. All Contractor personnel engaged in work while on Government property shall be subject to all applicable DOD and Navy Standards of Conduct.

(b) The Contractor shall be required to obtain identification badges from the Government for all Contractor personnel requiring regular access to Government property. When on-site in Government office spaces, laboratories, test facilities, or ship assets, Contractor employees shall be clearly identified as a Contractor (e.g., utilizing badge identifications and sign identifications in office spaces). The identification badge shall be visible at all times while employees are on Government property. The Contractor shall furnish all requested information required to facilitate issuance of identification badges and shall conform to applicable regulations in the Department of Defense Manual (DODM) 1000.13 concerning the use and possession of the badges.

(c) The Contractor shall ensure that all identification badges issued to Contractor employees are returned to the appropriate Security Office within 48 hours following completion of the Contract, relocation or termination of an employee, and upon request by the Contracting Officer.

(d) All Contractor personnel shall identify their company affiliation when answering or making telephone calls and sending email and when attending meetings where Government personnel or representatives from other Contractors are present. In addition, Contractor personnel cannot lead/manage/supervise Government personnel. Contractor program/project managers shall be clearly identified and known as such by Government employees.

(e) All persons engaged in work while on Government property shall be subject to search of their persons (no bodily search) and vehicles at any time by the Government and shall report any known or suspected security violations to the appropriate Security Department. Assignment, transfer, and reassignment of Contractor personnel shall be at the discretion of the Contractor. However, when the Government directs, the Contractor shall remove from Contract performance any person who endangers life, property, or national security through improper conduct.

C.12 TERMINATION OF EMPLOYEES WITH U.S. GOVERNMENT BADGES

(a) The Contractor shall ensure that all employees who have a DOD Common Access Card (CAC), turn in the CAC immediately upon employee separation and/or termination of their employment under this Contract. The above requirement shall be made a part of the standard employee facility clearance procedures for all separated personnel. The Contractor shall advise Command Physical Security of all changes in their personnel requiring DOD base access.

(b) For involuntarily separated personnel and those separated under adverse circumstances, the Contractor shall notify Command Physical Security in advance of the date, time, and location where the Command representative retrieve the DOD CAC prior to the employee departing the Contractor's facility. In the event the employee is separated in his or her absence, the Contractor shall immediately notify Command Physical Security of the separation and make arrangements between the former employee and Command Physical Security for the return of the CAC. If circumstances arise which necessitate urgent revocation of a CAC after normal business hours, the Mission Partner Identity, Credential and Access Management (MP ICAM) Mission Partner Affiliation Sponsor (MPAS) shall be immediately contacted. MPAS contact information will be provided by the COR after Task Order award.

CLAUSES INCORPORATED BY FULL TEXT

C-202-H001 ADDITIONAL DEFINITIONS--BASIC (NAVSEA) (OCT 2018)

- (a) Department means the Department of the Navy.
- (b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.
- (c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.
- (d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:
 - (1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.
 - (2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (OCT 2018)

(a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or

maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:

(1) The support contractor not disclose any information;

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.

(c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

C-211-H016 SPECIFICATIONS AND STANDARDS (NAVSEA) (OCT 2018)

(a) Definitions.

(i) A "zero-tier reference" is a specification, standard, or drawing that is cited in the contract (including its attachments).

(ii) A "first-tier reference" is either: (1) a specification, standard, or drawing cited in a zero-tier reference, or (2) a specification cited in a first-tier drawing.

(b) Requirements. All zero-tier and first-tier references, as defined above, are mandatory for use. All lower tier references shall be used for guidance only unless specifically identified below.

NONE

(End of Text)

C-211-H017 UPDATING SPECIFICATIONS AND STANDARDS (NAVSEA) (DEC 2018)

The contractor may request that this contract be updated to include the current version of the applicable specification or standard if the update does not affect the form, fit or function of any deliverable item or increase the cost/price of the item to the Government. The contractor should submit update requests to the Procuring Contracting Officer with copies to the Administrative Contracting Officer and cognizant program office representative for approval. The contractor shall perform the contract in accordance with the existing specifications and standards until notified of approval/disapproval of its request to update by the Procuring Contracting Officer. Any approved alternate specifications or standards will be incorporated into the contract.

(End of Text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

C-215-H002 CONTRACTOR PROPOSAL (NAVSEA) (OCT 2018)

(a) Performance of this contract by the Contractor shall be conducted and performed in accordance with detailed obligations to which the Contractor committed itself in Proposal _____ dated _____ in response to NAVSEA Solicitation No. _____.

(b) The technical volume(s) of the Contractor's proposal is(are) hereby incorporated by reference and made subject to the "Order of Precedence" (FAR 52.215-8) clause of this contract. Under the "Order of Precedence" clause, the technical volume(s) of the Contractor's proposal referenced herein is (are) hereby designated as item (f) of the clause, following "the specifications" in the order of precedence.

(End of Text)

C-223-W002 ON-SITE SAFETY REQUIREMENTS (NAVSEA) (OCT 2018)

(a) The contractor shall ensure that each contractor employee reads any necessary safety documents within 30 days of commencing performance at any Government facility. Required safety documents can be obtained from the respective safety office. Contractors shall notify the Safety office points of contact below to report completion of the required training via email. The email shall include the contractor employee's name, work site, and contract number.

(b) It is expected that contractor employees will have received training from their employer on hazards associated with the areas in which they will be working and know what to do in order to protect themselves. Contractors are required to adhere to the requirements of 29 CFR 1910, 29 CFR 1926 and applicable state and local requirements while in Government spaces. The contractor shall ensure that all on-site contractor work at the Government facility is in accordance with any local safety instructions as provided via the COR. The contractor shall

report all work-related injuries/illnesses that occurred while working at the Government site to the COR.

(c) Contractors whose employees perform work within Government spaces in excess of 1000 hours per calendar quarter during a calendar year shall submit the data elements on OSHA Form 300A, Summary of Work Related Injuries and Illnesses, for those employees to the safety office, via the COR by 15 January for the previous calendar year, even if no work related injuries or illnesses occurred. If a contractor's injury/illness rates are above the Bureau of Labor Statistics industry standards, a safety assessment may be performed by the Safety Office to determine if any administrative or engineering controls can be utilized to prevent further injuries/illnesses, or if any additional Personal Protective Equipment or training will be required.

(d) Any contractor employee exhibiting unsafe behavior may be removed from the Government site. Such removal shall not relieve the contractor from meeting its contractual obligations and shall not be considered an excusable delay as defined in FAR 52.249-14.

(e) The Safety Office points of contacts are as follows:

Charles Lehr (1024)

(540) 809-7699

Charles.r.lehr2.civ@us.navy.mil

(End of Text)

C-227-H006 DATA REQUIREMENTS (NAVSEA) (OCT 2018)

The data to be furnished hereunder shall be prepared in accordance with the Contract Data Requirements List, DD Form 1423, Exhibit(s) (A001-A004), attached hereto.

(End of Text)

C-237-H002 SUBSTITUTION OF KEY PERSONNEL (NAVSEA) (OCT 2018)

(a) The Contractor agrees that a partial basis for award of this contract is the list of key personnel proposed. Accordingly, the Contractor agrees to assign to this contract those key persons whose resumes were submitted with the proposal necessary to fulfill the requirements of the contract. No substitution shall be made without prior notification to and concurrence of the Contracting Officer in accordance with this requirement. Substitution shall include, but not be limited to, subdividing hours of any key personnel and assigning or allocating those hours to another individual not approved as key personnel.

(b) All proposed substitutes shall have qualifications equal to or higher than the qualifications of the person to be replaced. The Contracting Officer shall be notified in writing of any proposed substitution at least fortyfive (45) days, or ninety (90) days if a security clearance is to be obtained, in advance of the proposed substitution. Such notification shall include: (1) an explanation of the circumstances necessitating the substitution; (2) a complete resume of the proposed substitute; (3) an explanation as to why the proposed substitute is considered to have equal or better qualifications than the person being replaced; (4) payroll record of the proposed replacement; and (5) any other information requested by the Contracting Officer to enable him/her to judge whether or not the Contractor is maintaining the same high quality of personnel that provided the partial basis for award.

(c) Key personnel are identified in an attachment in Section J.

(End of Text)

C-237-W001 ELECTRONIC COST REPORTING AND FINANCIAL TRACKING (eCRAFT) SYSTEM REPORTING (NAVSEA) (MAY 2022)

(a) The Contractor agrees to upload the Contractor's Funds and Man-hour Expenditure Reports in the Electronic Cost Reporting and Financial Tracking (eCRAFT) System and submit the Contract Status Report on the day and for the same timeframe the contractor submits an invoice into the Wide Area Workflow (WAWF) module on the Procurement Integrated Enterprise Environment (PIEE) system. Compliance with this requirement is a material requirement of this contract. Failure to comply with this requirement may result in contract termination.

(b) The Contract Status Report indicates the progress of work and the status of the program and of all assigned tasks. It informs the Government of existing or potential problem areas.

(c) The Contractor's Fund and Man-hour Expenditure Report reports contractor expenditures for labor, materials, travel, subcontractor usage, and other contract charges.

(1) Access: eCRAFT: Reports are uploaded through the eCRAFT System Periodic Report Utility (EPRU). The EPRU spreadsheet and user manual can be obtained

at: <https://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Information-eCraft/> under eCRAFT information.

The link for eCRAFT report submission

is: https://www.pdrep.csd.disa.mil/pdrep_files/other/ecraft.htm. If you have problems uploading reports, please see the Frequently Asked Questions at the site address above.

(2) Submission and Acceptance/Rejection: The contractor shall submit their reports on the same day and for the same timeframe the contractor submits an invoice in WAWF. The amounts shall be the same. eCRAFT acceptance/rejection will be indicated by e-mail notification from eCRAFT.

(End of Text)

C-242-H001 EXPEDITING CONTRACT CLOSEOUT (NAVSEA) (OCT 2018)

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

(End of Text)

C-244-H002 SUBCONTRACTORS/CONSULTANTS (NAVSEA) (FEB 2023)

In addition to the information required by FAR 52.244-2(e) of the contract, when consent to subcontract is required per FAR 52.244-2, the contractor shall also include the following information in requests to add subcontractors or consultants during performance:

- (1) Impact on subcontracting goals,
- (2) Impact on providing support at the contracted value,
- (3) IF SEAPORT TASK ORDER - The results of negotiations to incorporate fee rate caps no higher than the lower of (i) SeaPort NXG fee rate caps for the prime contractor, or in the case where the proposed subcontractor is also a SeaPort NXG prime, (ii) fee rate caps that are no higher than the subcontractor's prime SeaPort NXG contract.

(End of Text)

**C-245-H005 INFORMATION AND DATA FURNISHED BY THE GOVERNMENT--
ALTERNATE I (NAVSEA) (MAY 2019)**

(a) Contract Specifications, Drawings and Data. The Government will furnish, if not included as an attachment to the contract, any unique contract specifications or other design or alteration data cited or referenced in Section C.

(b) Government Furnished Information (GFI). GFI is defined as that information essential for the installation, test, operation, and interface support of all Government Furnished Material identified in an attachment in Section J. The Government shall furnish only the GFI identified in an attachment in Section J. The GFI furnished to the contractor need not be in any particular format. Further, the Government reserves the right to revise the listing of GFI as follows:

(1) The Contracting Officer may at any time by written order:

- (i) delete, supersede, or revise, in whole or in part, data identified in an attachment in Section J; or
- (ii) add items of data or information to the attachment identified in Section J; or
- (iii) establish or revise due dates for items of data or information in the attachment identified in Section J.

(2) If any action taken by the Contracting Officer pursuant to subparagraph (1) immediately above causes an increase or decrease in the costs of, or the time required for, performance of any part of the work under this contract, the contractor may be entitled to an equitable adjustment in the contract amount and delivery schedule in accordance with the procedures provided for in the "CHANGES" clause of this contract.

(c) Except for the Government information and data specified by paragraphs (a) and (b) above, the Government will not be obligated to furnish the Contractor any specification, standard, drawing, technical documentation, or other publication, notwithstanding anything to the contrary in the contract specifications, the GFI identified in an attachment in Section J, the clause of this contract entitled "Government Property" (FAR 52.245-1) or "Government Property Installation Operation Services" (FAR 52.245-2), as applicable, or any other term or condition of this contract. Such referenced documentation may be obtained:

- (1) From the ASSIST database via the internet at <https://assist.dla.mil/online/start/>; or
- (2) By submitting a request to the

Department of Defense Single Stock Point (DoDSSP)

Building 4, Section D

700 Robbins Avenue

Philadelphia, Pennsylvania 19111-5094

Telephone (215) 697-6396

Facsimile (215) 697-9398

Commercial specifications and standards, which may be referenced in the contract specification or any sub-tier specification or standard, are not available from Government sources and should be obtained from the publishers.

(End of Text)